

K.Umashankar vs P.Bhavani on 9 February, 2026

IN THE HIGH COURT OF JUDICATURE AT MADRAS

DATED : 09.02.2026

CORAM

THE HONOURABLE MR.JUSTICE S.SOUNTHAR

C.R.P.No.538 of 2026

and

C.M.P.No.2861 of 2026

K.Umashankar

vs.

P.Bhavani

PRAYER: Civil Revision Petition is filed under Article 227 of the Constitution of India, to set aside the Order dated 18.10.2025 passed in I.A.No.07 of 2025 in H.M.O.P.No.2559 of 2023 on the file of the VI Additional Family Court at Chennai and allow the above C.R.P.

For Petitioner : Mr.K.M.Balaji

For Respondent : Mr.A.S.Bhuvaneshwari

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ORDER

The Civil Revision Petition is filed challenging the order passed by the VI Additional Family Court, Chennai in I.A.No.07 of 2025 in H.M.O.P.No.2559 of 2023, dated 18.10.2025 partly allowing the application filed by the respondent/wife by directing the petitioner/husband to pay maintenance amount of Rs.25,000/- per month to the child of the petitioner and respondent.

2. The respondent herein filed a original petition in H.M.O.P.No.2559 of 2023 seeking divorce on the ground of cruelty. Pending main original petition, she filed an application in I.A.No.7 of 2025 under Section 24 of the Hindu Marriage Act, 1955, seeking interim maintenance at the rate of Rs.1,00,000/- per month for herself and also for her minor child. She also sought for litigation expenses of Rs.50,000/-. The Family Court by impugned order found that the respondent is having a decent income and hence, ordered maintenance only for child at the rate of Rs.25,000/- per month. It also ordered litigation expenses at Rs.25,000/- to the respondent. Aggrieved by the quantum of interim maintenance fixed by the Family Court, the petitioner has come before this Court. <https://www.mhc.tn.gov.in/judis> (Uploaded on: 19/02/2026 08:32:24 pm)

3. The learned counsel appearing for the petitioner would submit that having regard to the income of the petitioner and also the fact that respondent is Government employee, the quantum of interim maintenance fixed by the Family Court is excessive.

4. It is pertinent to note that the respondent/wife challenged the very same impugned order in C.R.P.No.427 of 2026 seeking enhancement of the maintenance and the said revision was dismissed by this Court by order dated 04.02.2026.

5. It is seen from the typed-set of papers and also the order passed in C.R.P.No.427 of 2026, as per the affidavit of assets and liabilities filed before the Family Court, the respondent is a B.Sc., Graduate, working as Assistant under the Tamil Nadu Government. She is earning a sum of Rs.41,000/- per month. Considering the fact that she is the Government Servant, having decent income, the Family Court rightly came to the conclusion and not ordered any maintenance to her.

6. As per the affidavit of assets and liabilities of the petitioner/husband, he is working as a Manager in a Private Company at <https://www.mhc.tn.gov.in/judis> (Uploaded on: 19/02/2026 08:32:24 pm) Bangaluru and earning a sum of Rs.1,10,000/- per month. Having regard to the quantum of salary of the petitioner, the quantum of interim maintenance ordered by the Family Court is very reasonable.

7. The amount of maintenance awarded by the Family Court is less than 1/4th of the total income of the petitioner. I do not find any error in the impugned order passed by the VI Additional Family Court, Chennai in I.A.No.07 of 2025 in H.M.O.P.No.2559 of 2023, dated 18.10.2025 directing the petitioner/husband to pay a sum of Rs.25,000/- per month as interim maintenance to minor child and also to pay litigation expenses at the rate of Rs.25,000/-.

8. Having found nothing to interfere with the impugned order, the Civil Revision Petition stands dismissed. No costs. Consequently, the connected civil miscellaneous petition is closed.

Index : Yes / No
Speaking order : Yes / No
Neutral Citation : Yes / No
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To

The VI Additional Family Court,
Chennai.

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S.SOUNTHA

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